EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 34014/04
UNTU FOOTBALLERS OF UKRAINE
against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 29 January 2014 as a Committee composed of:

Angelika Nußberger, *President,*
Ganna Yudkivska,
André Potocki, *judges,*

and Stephen Phillips, *Deputy Section Registrar,*

Having regard to the above application lodged on 20 September 2004,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant organisation, Footballers of Ukraine, was a trade union operating on a national basis (*Всеукраїнська національна профспілка «Футболісти України»*) which had been registered as a non-governmental organisation (*громадська організація*) by the Ministry of Justice of Ukraine in 2000. It was represented before the Court by Mr O. Pechorny, the Head of the Coordinating Council of the union, Mr V.M. Kurulyuk and Ms N. Y. Pan, lawyers practicing in Dnipropetrovsk.

The Ukrainian Government ("the Government") were represented by their Agent.

Relying on Article 11 of the Convention, the applicant organisation complained that the respondent State had violated the right to form and to join trade unions for the protection of one's interests, as its registration had been annulled by the domestic court without any legitimate explanation.

The applicant organisation further alleged that the State authorities had breached Article 6 § 1 of the Convention, which guarantees the right to a fair hearing within a reasonable time by an independent and impartial tribunal established by law.

The applicant organisation further complained under Article 10 of the Convention of a violation of its freedom of expression. Lastly, citing Article 13 of the Convention, the applicant organisation complained that it had had no effective remedy against the interference with its rights protected by the Convention.

The case was communicated to the Government who by letter dated 5 June 2013 informed the Court that they were interested in concluding a friendly settlement and spontaneously submitted a declaration to that effect. A copy of the Government's letter together with the declaration was sent to the applicant organisation on 28 June 2013 for comment. The Court's correspondence addressed to Mr O. Pechorny, Head of the Coordinating Council of the applicant organisation, was returned, the envelope marked "Inconnu".

By letter dated 29 October 2013, sent by registered post to Mr Pechorny as well as to both other representatives, the applicant organisation was notified that the period allowed for submission of its reply to the Government's proposal for a friendly settlement had expired on 26 July 2013 and that no extension of time had been requested. The applicant's representatives' attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. One of the applicant's representatives (Ms Pan) received this letter on 12 November 2013. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicant organisation may be regarded as no longer wishing to pursue its application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Stephen Phillips
Deputy Registrar

Angelika Nußberger
President